

band (*d*); nor can the assets be taken in execution for the debt of the executor (*e*), [unless under such special circumstances as give the creditors of the executor a better equity than the creditors of the testator, as where the executor has been allowed to retain the assets for a considerable time and deal with them as his absolute property (*f*); but possession by the executor of the assets for a long time if in accordance with the trusts will not raise such an equity (*g*); and if, under the old law as to forfeiture, the executor] committed felony or treason, the assets were exempted from forfeiture to the crown (*h*); and if the executor die intestate instead of vesting in his administrator, they vest in the administrator *de bonis non* of the testator (*i*).

7. **Attachment.** — Attachment by the custom of the City of London does not apply to debts [where the beneficial interest is vested in a person other than the defendant sued in the Lord Mayor's Court and the garnishee has notice of the trust (*j*).]

8. **Trustee may deal with the trust estate by Act inter vivos.** — A trust estate, whether real or personal, may, *at law*, be conveyed, assigned, or encumbered by the trustee, like a beneficial estate; and, if there be co-trustees, each may exercise the like powers of ownership over his own proportion. Thus if lands be vested in trustees as joint-tenants, each may at law receive the rents (*k*), and each may at law sever the joint-tenancy by a conveyance of his share (*l*); and if the trust estate be stock each may receive the dividends without any authority from the co-trustee.

**General words.** — But, in dealings with the trust estate,

(*d*) *Soady v. Turnbull*, 1 L. R. Ch. App. 494.

(*e*) *Farr v. Newman*, 4 T. R. 621; [*Re Morgan*, 18 Ch. D. 93.]

[(*f*) *Ray v. Ray*, G. Coop. 264; *Kitchen v. Ibbetson*, 17 L. R. Eq. 46; and see *In re Fells*, 4 Ch. D. 509; *Re Morgan*, 18 Ch. D. 93.]

[(*g*) *Fenwick v. Laycock*, 2 Q. B. 108; *Re Morgan*, 18 Ch. D. 93; and see *Ex parte Barber*, 42 L. T. N. S. 411, 28 W. R. 522.]

(*h*) *Farr v. Newman*, 4 T. R. 628, *per Grose, J.*; [see now 33 & 34 Vict. c. 23.]

(*i*) *Ib. per eundem*; *Rachfield v. Careless*, 2 P. W. 161, *per Powis, J.*

(*j*) *Westoby v. Day*, 2 Ell. & Bl. 605; *Lewis v. Wallis*, Sir T. Jones, 222.

(*k*) *Townley v. Sherborne*, Bridge. 35.

(*l*) *Boursot v. Savage*, 2 L. R. Eq. 134.